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Memorandum

To: Members of the State Board of Elections
From: Melissia Dorsey
Date: March 26, 2026
Re: Final Regulations for March Meeting

At the March 26, 2026 meeting, we will present final regulations for adoption. These regulations were originally presented on December 18, 2025. These regulations were open for public comment from February 6, 2026 until March 9, 2026. These regulations received several comments. The accompanying document includes the final regulations and comments received.

We are proposing final adoption of the following regulations:

- a. 33.08.05.01 - Definitions
- b. 33.08.05.06 - Post-Election Audit - Precincts
- c. 33.08.05.08 - Ballot Tabulation Audit - In General
- d. 33.08.05.09 - Post-Election Audit - Ballot Tabulation Audit - Risk Limiting Audit
- e. 33.07.10.01 - Election Day Activities - Non-Voting Hours Procedures - Ballot Box Return and Inspection
- f. 33.11.06.01 - Absentee Ballots - Post Election Procedures - Storage of Materials
- g. 33.17.07.03 - Early Voting - Non-Voting Hours Procedures - Processing and Storing Ballots
- h. 33.09.03.05 - Voting System Certification and General Requirements - State Board Certifications - Preliminary Submissions - Technical Data Package
- i. 33.19.02.01 - Same Day Registration and Address Change - Public Notices - Minimum Requirements

If you have any questions before the meeting, please do not hesitate to ask. Otherwise, we are happy to answer your questions at the meeting.

(3) *Alternative member-advisors may not attend in place of approved members for more than 33 percent of regular meetings annually.*

F. Quorum and Voting Requirements.

(1) *A majority of voting members of the Council must be present to constitute an official meeting of the Council and to establish a quorum to vote. If a majority of voting members are not present, the Council may still convene, but may not establish a quorum for voting.*

(2) *Agreement of a majority of voting members of the Council members present at a meeting is required for a formal recommendation made by the Council.*

(3) **Differentiation of Votes.**

(a) *The three different types of votes are:*

(i) *Yay;*

(ii) *Nay; or*

(iii) *Abstain.*

(b) *For an abstaining vote, if the Council member is present at the meeting but does not cast a vote, it is assumed that the members vote is to abstain.*

(4) *Stakeholders listed in §§C(6) and (7) of this regulation are non-voting members of the Council.*

G. Application and Criteria for Additions to the Council.

(1) *Application for membership to the Council. Applications shall be submitted to the Department for their approval in a form provided by the Department.*

(2) **Criteria:**

(a) *Must represent a stakeholder sector that is not already represented on the Council and that is impacted by this chapter;*

(b) *Increase evenness of representation between material industry groups, materials management groups, environmental advocacy groups, or the general public; or*

(c) *Other requirements as determined by the Department.*

(3) *Final approvals or additions to the Council will be at the discretion of the Department.*

SERENA MCILWAIN
Secretary of the Environment

Title 33 STATE BOARD OF ELECTIONS

Notice of Proposed Action

[25-321-P]

The State Board of Elections proposes to:

(1) Amend Regulation .01 under **COMAR 33.07.10 Non-Voting Hours Procedures;**

(2) Amend Regulations .01, .06, and .08, repeal existing Regulation .09, and adopt new Regulation .09 under **COMAR 33.08.05 Post Election**

Verification and Audit;

(3) Amend Regulation .05 under **COMAR 33.09.03 State Board Certification—Preliminary Submissions Requirements;**

(4) Amend Regulation .01 under **COMAR 33.11.06 Post Election Procedures;**

(5) Amend Regulation .03 under **COMAR 33.17.07 Non-Voting Hours Procedures;** and

(6) Amend Regulation .01 under **COMAR 33.19.02 Public Notice.**

This action was considered at an open board meeting on December 18, 2025.

Statement of Purpose

The purpose of this action is to propose changes to existing regulations. Changes to regulations in Subtitle 8 change the format of the audit. The additional changes listed in Subtitles 7, 9, 11, and 17, change processes for storing and identifying batches of ballots so that they can be identified for the risk limiting audit. The change to Subtitle 19 enables SBE to request information from vendors during procurement of the new voting system needed to determine compatibility of the system with risk limiting audits.

Estimate of Economic Impact

The proposed action has no economic impact.

Economic Impact on Small Businesses

The proposed action has minimal or no economic impact on small businesses.

Impact on Individuals with Disabilities

The proposed action has no impact on individuals with disabilities.

Opportunity for Public Comment

Comments may be sent to Morgan Rhoden, Director of Communications, State Board of Elections, PO Box 6486, Annapolis, MD 21401, or call 410-269-2840, or email to dl_regcomments_SBE@maryland.gov. Comments will be accepted through March 9, 2026. A public hearing has not been scheduled.

Subtitle 07 ELECTION DAY ACTIVITIES

33.07.10 Non-Voting Hours Procedures

Authority: Election Law Article, §§2-102(b)(4)[and], 2-202(b) and 11-309, Annotated Code of Maryland

.01 Ballot Box Return and Inspection.

- A. (text unchanged)
- B. Reception Team to Receive. The sealed [or locked] ballot boxes from the polling places shall be received by a reception team.
- C. Marking.
 - (1) Each ballot box shall be marked as having been inspected before it is delivered to a ballot reception team; *and*
 - (2) *Each ballot box shall be marked with the batch label prior to certification in §D of this regulation.*
- D. Inspection and Certification.
 - (1) The reception team shall:
 - (a) Inspect each ballot box and its seal [or lock]; and
 - (b) (text unchanged)
 - (2) The certification for each box shall include:
 - (a) (text unchanged)
 - (b) The seal number[, if a seal is used];
 - (c) The condition of seal [or lock]; [and]
 - (d) Any defects observed[.]; *and*
 - (e) *The batch label.*

Subtitle 08 CANVASSING

33.08.05 Post Election Verification and Audit

Authority: Election Law Article, §§11-309, Annotated Code of Maryland

.01 Definitions.

- A. (text unchanged)
- B. Terms Defined.
 - (1) “Automated software audit” [is a software audit performed by an entity other than the vendor of the certified voting system] *has the meaning stated in Election Law Article, §11-309, Annotated Code of Maryland.*
 - (2) “Ballot-level comparison audit” *means a type of risk-limiting audit in which the local board examines voter selections on randomly selected individual paper ballots and compares them with corresponding cast vote records.*
 - (3) “Ballot polling audit” *means a type of risk-limiting audit in which the local board examines voter selections on randomly selected ballots.*
 - (4) “Ballot manifest” *means a detailed catalog prepared by the local board listing the batch label, number of ballots, and any other material required by the State Board as necessary to identify ballots for the risk-limiting audit.*
 - (5) “Batch” *means a grouping of ballots by criteria determined by the State Board and individually stored in a ballot box.*
 - (6) “Batch comparison audit” *means a type of risk-limiting audit in which the local board examines voter markings on randomly selected batches of ballots against the voting system counts.*
 - (7) “Batch label” *means the uniform naming convention determined by the State Board that is used to identify the batch of ballots.*
 - (8) “Cast vote records” *means an auditable document or electronic record that purports to reflect the selections a voter made on a ballot.*
 - [(2)] (9) “Discrepancy” *means the difference between the voting system results and the results of an automated or [manual] risk-limiting audit.*
 - [(3)] (10) “Manual [audit] count” *has the meaning stated in Election Law Article, §11-309, Annotated Code of Maryland.*
 - [(4)] (11) “Precinct” *includes an early voting center in Regulations .02 — .06 of this chapter.*
 - [(5)] “Previous comparable general election” *has the meaning stated in Election Law Article, §11-309, Annotated Code of Maryland.]*
 - (12) “Random seed” *means a randomly generated number that is used to generate a random number sequence to select ballot cards or batches of ballot cards for audit.*
 - (13) “Risk limit” *has the meaning stated in Election Law Article, §11-309, Annotated Code of Maryland.*
 - (14) “Risk-limiting audit” *has the meaning stated in Election Law Article, §11-309, Annotated Code of Maryland.*
 - (15) “Risk-limiting audit software” *means the software used by the State Board in order to conduct the risk-limiting audit.*
 - [(6)] (16) (text unchanged)

.06 Post-Election Audit—Precincts.

- A. [Automated] *Automatic.*
 - (1) (text unchanged)
 - (2) The election director shall conduct the audit procedures under §B of this regulation *for all batches of ballots scanned at that precinct* if the State Administrator’s report indicates that the difference between the number of voters checked-in to vote and the number of ballots cast is five or more.
- [B. Manual.
 - (1) The election director shall conduct the audit procedures under this section for each precinct:
 - (a) Selected under Regulation .04 of this chapter; and
 - (b) Identified under §A of this regulation.
 - (2) For each precinct being audited, the election director shall:
 - (a) Hand count the signed voter authority cards associated with each voting unit in the precinct; and
 - (b) Compare the number of signed voter authority cards against the number of ballots cast as reported in the Election Management System.
 - (3) If the number of signed voter authority cards does not match the number of ballots cast, the election director shall:
 - (a) Review other election materials from the precinct to determine the cause of the difference; and
 - (b) Report to the State Administrator the explanation for the difference.]
- B. *Automatic Audit Procedures—Addition of Batches to Risk-Limiting Audit.*
 - (1) *Batches shall be added to risk-limiting audit under COMAR 33.08.05.09. The election director shall:*
 - (a) *Add the batches identified in §A of this regulation to the batches audited by the risk limiting audit; and*

(b) Conduct the audit procedures under this section for each batch of ballots cast at precinct identified under §A of this regulation.

(2) For each batch being audited, the election director shall also:

(a) Hand count the signed voter authority cards associated with each voting unit used to scan the batch; and

(b) Compare the number of signed voter authority cards against the number of ballots cast as reported in the Election Management System.

(3) If the number of signed voter authority cards does not match the number of ballots cast, the election director shall:

(a) Review other election materials from the precinct to determine the cause of the difference; and

(b) Report to the State Administrator the explanation for the difference.

C. (text unchanged)

[D. Certifying the Election. If the audit demonstrates an unexplained discrepancy between the number of signed voter authority cards and the number of ballots cast and that discrepancy is:

(1) Less than the vote margin of any contest on the ballot in that precinct, the local board of canvassers shall accept the audit results and certify the election; or

(2) Greater than the vote margin of any contest on the ballot in that precinct, the local board of canvassers may not certify the election until any corrective actions required by the State Administrator are completed.]

.08 Post-Election Audit—Ballot Tabulation Audit—In General.

A. (text unchanged)

B. Audit Conducted by the Local Boards. Each local board shall conduct a [manual] *risk-limiting* audit of voter-verifiable paper records[:] *after each Statewide election.*

[(1) After each Statewide general election; and

(2) After a Statewide primary election at the direction of the State Administrator.]

C. Reporting of Audit Results.

(1) [Within 14 days after the conclusion of the manual audit, the] *The State Administrator shall post on the State Board website [a report that describes]:*

[(a) The precincts and number of votes selected for the manual audit in each county and the manner in which the precincts and votes were selected;

(b) The results of the manual audit; and

(c) Any discrepancy shown by the manual audit and how the discrepancy was resolved.]

(a) *Prior to certification of the election by the Board of State Canvassers, the results of the risk-limiting audit, including:*

(i) *An overview of the risk-limiting audit process; and*

(ii) *An explanation or video of the batch selection process; and*

(b) *Within 1 week after certification of election results by the Board of State Canvassers, the results of the automated software audit, including:*

(i) *An overview of the automated audit process;*

(ii) *The audit reports generated for each county;*

(iii) *An explanation of any discrepancy greater than 0.5 percent of total votes cast in any given contest; and*

(iv) *Any additional steps taken to resolve any discrepancy.*

[(2) Before the Board of State Canvassers certifies the results of an election, the State Administrator shall post on the website information about the automated audit, including:

(a) An overview of the automated audit process;

(b) The audit reports generated for each county; and

(c) An explanation of any discrepancy greater than 0.5 percent of total votes cast in any given contest; and

(d) Any additional steps taken to resolve any discrepancy.]

(2) *Prior to certification of the election by the Board of State Canvassers, the State Administrator shall report the results of the risk-limiting audit to the Board of State Canvassers and the State Board.*

.09 Post-Election Audit—Ballot Tabulation Audit—Risk-Limiting Audit.

A. In General.

(1) *Audit Method.*

(a) *Except as provided in §A(1)(b) of this regulation, a batch comparison audit shall be conducted in accordance with Election Law Article, §11-309, Annotated Code of Maryland.*

(b) *Exception to Batch Comparison. If the State Administrator determines that a batch comparison audit cannot be completed prior to the Board of State Canvassers certification, the audit may be conducted using the following methods:*

(i) *Ballot comparison;*

(ii) *Ballot polling; or*

(iii) *A hybrid of batch comparison, ballot comparison, or ballot polling.*

(2) *Risk Limit. The risk limit shall be 10 percent.*

(3) *Timing of Audit.*

(a) *No later than 17 days after election day, the local board shall provide to the State Board a ballot manifest, in the manner prescribed by the State Board.*

(b) *The local board shall commence a risk-limiting audit no sooner than 21 days after election day.*

(c) *The local board shall complete a risk-limiting audit no later than 2 days before the Board of State Canvassers convenes under Election Law Article, §11-503(a)(1), Annotated Code of Maryland.*

B. *Public Notice and Observation.*

(1) *A local board shall:*

(a) *At least 3 days before the risk-limiting audit starts, provide notice of the risk-limiting audit by:*

- (i) Sending the notice to the chairman of the county central committee, each candidate for the contest to be audited who is not a candidate of a principal political party, and the State Administrator;
- (ii) Posting the notice on its website; and
- (iii) Posting the notice in a prominent and publicly accessible location at its office; and
- (b) Allow, to the extent practicable, for public observation of each part of the manual count of ballots of the risk-limiting audit process.

(2) The State Board shall:

- (a) Provide at least 3 days notice of the time, date, and location for conducting risk-limiting audit initiation procedures required in §E of this regulation by posting the notice on its website; and
- (b) Allow, to the extent practicable, for public observation of risk-limiting audit initiation procedures.

C. Selection of Contests for Audit.

(1) Determination of Number of Statewide Contests. No later than the day before the start of the risk-limiting audit, the State Board shall determine the number of contests to be audited as follows:

- (a) Consider the number of Statewide contests in the election;
- (b) Consider local boards' resources, including provisional processing, canvass, and recounts;
- (c) For a primary election:
 - (i) If one contest is selected, require auditing of at least one Statewide contest on one party's ballot;
 - (ii) If two contests are selected, require auditing of at least one Statewide contest on each party's ballot; and
- (d) In a general election, require auditing of at least one Statewide contest.

(2) Determination of Statewide Contest. No later than the day before the start of the risk-limiting audit, the State Board shall randomly select from all Statewide contests at least one contest to be audited.

(3) Requests by Local Boards to Audit Local Contests.

- (a) A local board may conduct a risk-limiting audit of a local contest at the discretion of the local board.
- (b) If a local board conducts a risk-limiting audit of a local contest:
 - (i) All Statewide contests must be completed prior to the commencement of the audit; and
 - (ii) The timing of completion of the risk-limiting audit of the Statewide contest may not be affected by the local contest audit.
- (c) A local board may request the State Administrator's approval in writing no later than 1 month prior to the election, to use the risk-limiting audit software to conduct the local contest audit.

D. Local Board Preparations for Audit.

(1) Ballot Control. Each local board shall store ballots as follow:

- (a) In a sealed ballot box, with only ballots from the same batch; and
- (b) With the batch label on the exterior of the ballot box, which identifies the batch as it appears on the ballot manifest.

(2) Requirement to Provide Ballot Manifest. Each local board shall provide to the State Board no later than 17 days after election day:

- (a) A ballot manifest in the manner prescribed by the State Board;
- (b) An estimate of all provisional and mail-in ballots that have not yet been canvassed; and
- (c) Certification that all batches listed on the ballot manifest have been verified by the local board as required by the State Board.

E. Initiation of Risk-Limiting Audit. On the day before the first day of the risk limiting audit, the State Administrator shall hold a public meeting during which the State Administrator shall:

- (1) Select random choice of a seed number to input into risk-limiting audit software; and
- (2) Using the randomly-selected seed, risk limit, and margin of victory for the contest or contests selected to be audited, determine the ballots to be audited by each local board.

F. Manual Count Procedures.

(1) Each election director shall:

- (a) Prepare for a risk-limiting audit by recruiting and training manual count teams;
- (b) Instruct teams to use the sort method described in §F(2) of this regulation if one Statewide contest are audited;
- (c) Instruct teams to use the tally method described in §F(3) of this regulation if more than one Statewide or local contest is audited;
- (d) Issue the teams batches or voter verifiable paper records chosen by the risk-limiting software for manual count; and
- (e) Record in the audit log:
 - (i) The team identifier;
 - (ii) The voter verifiable paper records issued to the team; and
 - (iii) Upon completion, the voter verifiable paper records returned by the team;
- (f) Enter the vote totals reported by manual count teams on the consolidated tally sheets;
- (g) Compare the results of the manual count against the voting system results for those voter verifiable paper records;
- (h) If there are any inaccuracies, retabulate the voter verifiable paper records;
- (i) If manual and electronic counts agree, complete and sign the tally sheet; and
- (j) Within 24 hours after completion of the audit, submit the results to the State Administrator.

(2) Sort Method. Each manual count team shall:

- (a) Designate one team member who shall sort and a second team member who shall watch to ensure accuracy;
- (b) Sort all assigned voter verifiable paper records into one of the following batches:
 - (i) A batch for each candidate or ballot question response for a contest being audited;
 - (ii) A batch for voter verifiable paper records without a vote for a contest being audited;
 - (iii) A batch for each officially filed write-in candidate for a contest being audited; and
 - (iv) A batch for all other write-in votes;
- (c) If team members do not agree on how a vote should be counted:
 - (i) Refer the voter verifiable paper record to the election director; and
 - (ii) For auditing purposes only, accept the election director's determination of how the vote shall be counted;

- (d) Once all of the voter verifiable paper records have been sorted, ensure that each team member independently counts the voter verifiable paper records in each batch;
- (e) If the team members' results are not identical, retabulate the voter verifiable paper records until obtaining identical results; and
- (f) When the team members' results are identical:
- (i) Record the vote totals on the batch tally sheet;
 - (ii) Sign the batch tally sheet; and
 - (iii) Give the batch tally sheet and the voter verifiable paper records to the election director.
- (3) Tally Method. Each manual count team shall:
- (a) Include one caller, one watcher, and two tally clerks;
 - (b) For each voter verifiable paper record assigned to it:
 - (i) Have its caller call the votes cast in the contests being audited;
 - (ii) Have its watcher ensure the accuracy of the calling; and
 - (iii) Have its two tally clerks independently record the votes as they are called;
 - (c) Ensure that its tally clerks periodically compare their results;
 - (d) If the tally clerks' results are not identical, retabulate voter verifiable paper records beginning with the point of the last successful comparison check, and repeat until the two tally clerks obtain identical results; and
 - (e) When all votes assigned to the team have been tallied, ensure that its tally clerks:
 - (i) Record the vote totals on the batch tally sheet;
 - (ii) Sign the batch tally sheet; and
 - (iii) Give the batch tally sheet and the voter verifiable paper records to the election director.
- (4) Resolving Electronic Count.
- (a) If the manual count of results in an audited contest does not confirm the electronic count of results for that contest, the local board of canvassers shall investigate the matter to determine an accurate result, including:
 - (i) A review of all tally sheets and other documentary materials from the risk-limiting audit;
 - (ii) A review of all canvass minutes;
 - (iii) Interviews with the election director; and
 - (iv) Any other information that would explain the difference between the audit and the electronic count of results.
 - (b) No later than 3 days after beginning the investigation, the local board of canvassers shall:
 - (i) Provide to the State Administrator written findings explaining the difference; and
 - (ii) If it concludes that the electronic count is inaccurate, adopt corrections to certified results in accordance with Election Law, §§11-308 and 11-401, Annotated Code Maryland.

Subtitle 09 VOTING SYSTEMS—CERTIFICATION AND GENERAL REQUIREMENTS

33.09.03 State Board Certification—Preliminary Submissions

Authority: Election Law Article, §§2-102(b)(4), 2-202(b), [and] 9-102(b), and 11-309 Annotated Code of Maryland

.05 Technical Data Package.

A. Required Information — In General. The technical data package shall contain all documentation previously submitted for the qualification testing of the system, including each of the following:

- (1)—(7) (text unchanged)
- (8) Any known and unresolved system problems; [and]
- (9) When available, the report and test results of the independent testing laboratory; and
- (10) Any capability for the system to conduct a risk limiting audit of its tabulated results.

B.—C. (text unchanged)

Subtitle 11 ABSENTEE BALLOTS

33.11.06 Post-Election Procedures

Authority: Election Law Article, §§2-102(b)(4), 2-202(b), [and] 9-303, and 11-309 Annotated Code of Maryland; 42 U.S.C. §§1973ff-1(h) and 1974

.01 Storage of Materials.

A. After completing canvassing procedures, a local board shall retain all voted ballots in a sealed ballot box labeled with a batch label until they are authorized to be opened and removed for an audit, recount, judicial challenge, storage, or disposal.

[A.]B.— [B.]C. (text unchanged)

Subtitle 17 EARLY VOTING

33.17.07 Non-Voting Hours Procedures

Authority: Election Law Article, §§2-102(b)(4), 2-202(b), 10-301.1, [and] 11-301, and 11-309, Annotated Code of Maryland

.03 Processing and Storing Ballots.

A. (text unchanged)

B. The local board shall maintain ballots voted during early voting:

- (1) Grouped by [early voting center] *batch number*; and
 [(2) Grouped by day; and]
 [(3)] (2) (text unchanged)

Subtitle 19 SAME DAY REGISTRATION AND ADDRESS CHANGES

33.19.02 Public Notice

Authority: Election Law Article, §§2-102(b)(4), 2-202(b), 3-305(d) and (e), and 3-306(d) and (e), Annotated Code of Maryland

.01 Minimum Requirements.

A. State Board. After the close of registration for each election, but prior to election day, the State Administrator shall take appropriate measures to notify each pre-qualified voter how to find the individual's correct polling place. [When feasible, the State Administrator shall send a pre-election mailing to each pre-qualified voter, which shall include the correct polling place for the pre-qualified voter's address.]

B. (text unchanged)

JARED DEMARINIS
 State Administrator of Elections

Errata

COMAR 10.32.08

At 52:1 Md. R. 21 (January 9, 2026), column 1, line 8 from the top:

For: **COMAR 10.32.10 Licensure of Athletic Trainers. This action,**

Read: **COMAR 10.32.08 Licensure of Athletic Trainers. This action,**

COMAR Title 36

At 52:25 Md. R. 1353 (December 26, 2025), column 2, line 21 from the top:

For: jennifer.beskid1@maryland.gov. Comments will be accepted

Read: jennifer.beskid1@maryland.gov. Comments will be accepted

Special Documents

THE MARYLAND DEPARTMENT OF NATURAL RESOURCES

FISHING AND BOATING SERVICES

Chester River Oyster Harvest Areas — Effective 11/3/2025 Public Notice

WHAT THIS NOTICE DOES

The Secretary of the Maryland Department of Natural Resources announces that the portion of the Chester River described below is closed to all oyster harvest, with the noted exceptions. This notice supersedes all previous notices regarding oyster harvest in the Chester River prior to November 3, 2025.

CLOSED AREA

Except for the areas described in the "Open Areas" section of this notice, the area that is closed is all of the waters of the Chester River east of a line defined by a point on the shore of Long Point defined by Lat. 38°58.798' N, Long. 76°13.825' W; then running 8° True to Panhandle Point on the west side of Eastern Neck Island defined by Lat. 39°0.936' N, Long. 76°13.444' W; and north of a line defined by a point on shore defined by Lat. 38°58.798' N, and Long. 76°13.826' W; then running 271° True to a point defined by Lat. 38°58.808' N, and Long. 76°14.642' W, including all creeks and coves.

OPEN AREAS

Piney Point